

Downtown-Eastside/Oppenheimer
Official Development Plan

BY-LAW NO. 5532

A By-law to Adopt an
Official Development Plan

THE COUNCIL OF THE CITY OF VANCOUVER in open meeting assembled, enacts as follows:

1. The document entitled "Downtown-Eastside/Oppenheimer Official Development Plan" which is annexed hereto as Schedule "A" and is part of this By-law, is hereby adopted as an Official Development Plan.

2. This By-law comes into force and takes effect on the date of its passing.

DONE AND PASSED in open Council this 20th day of
April , 1982.

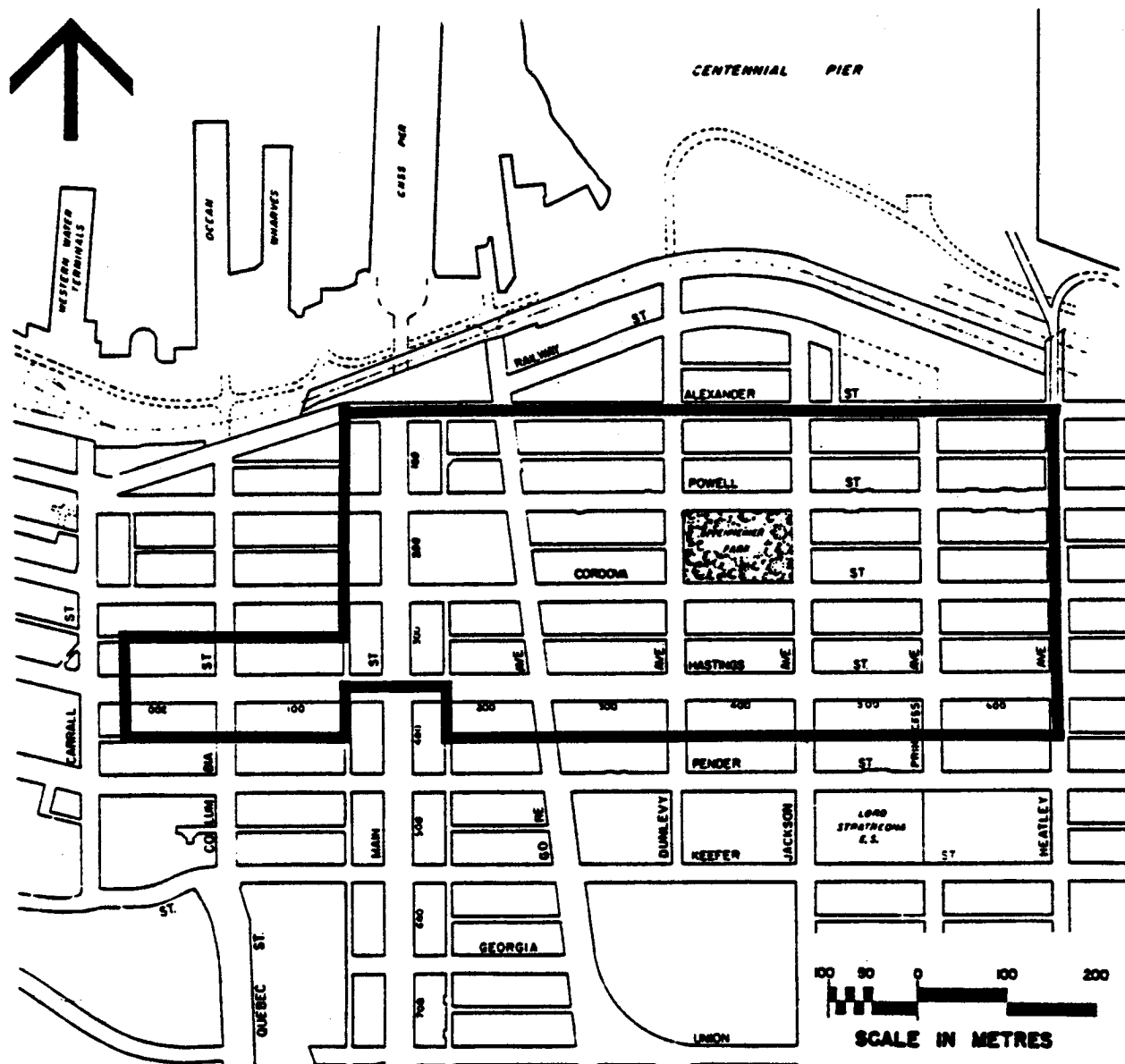
Ray Brown
Deputy Mayor

R. Henry
City Clerk

SCHEDULE "A"

DOWNTOWN-EASTSIDE/OPPENHEIMER OFFICIAL DEVELOPMENT PLAN

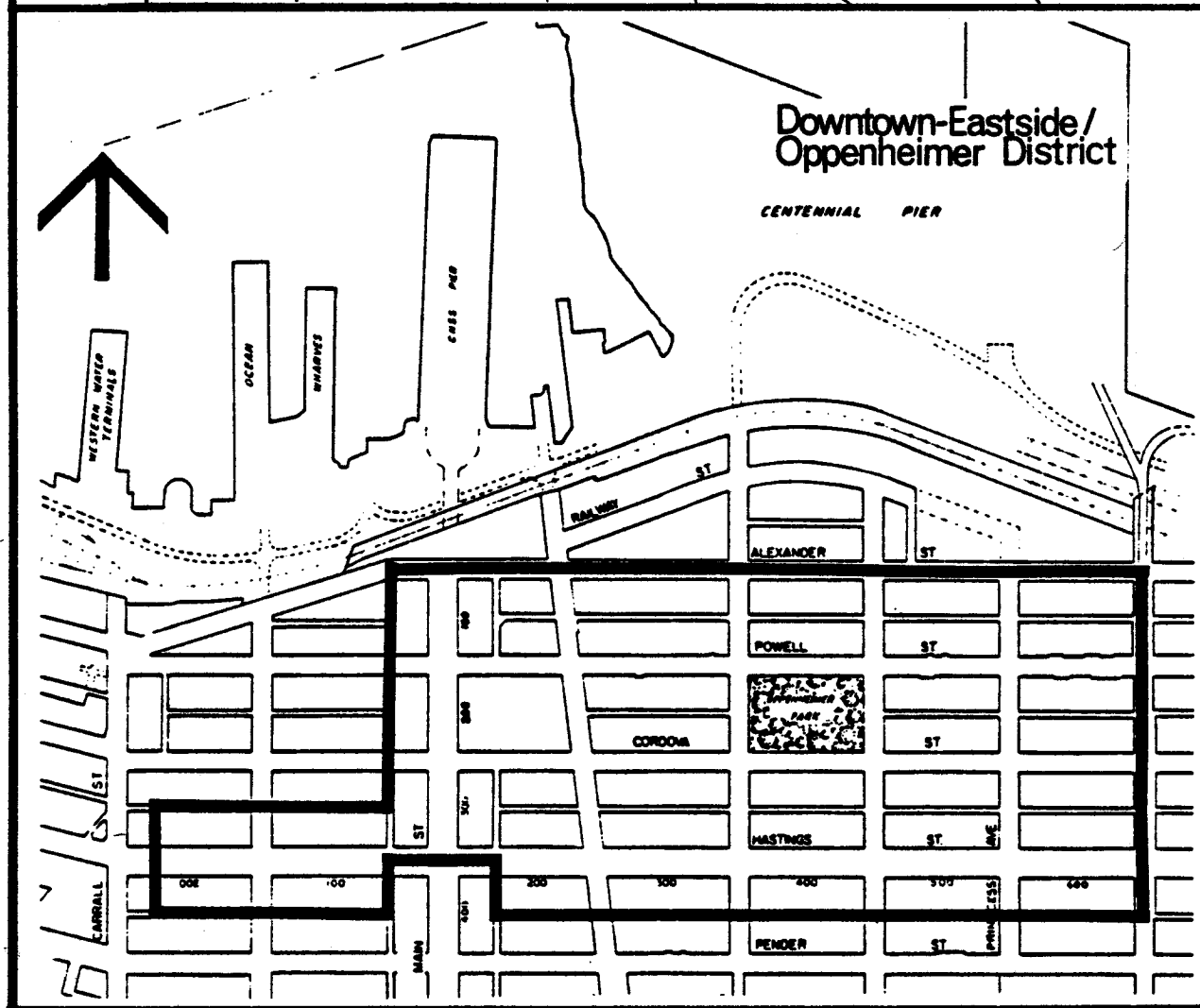
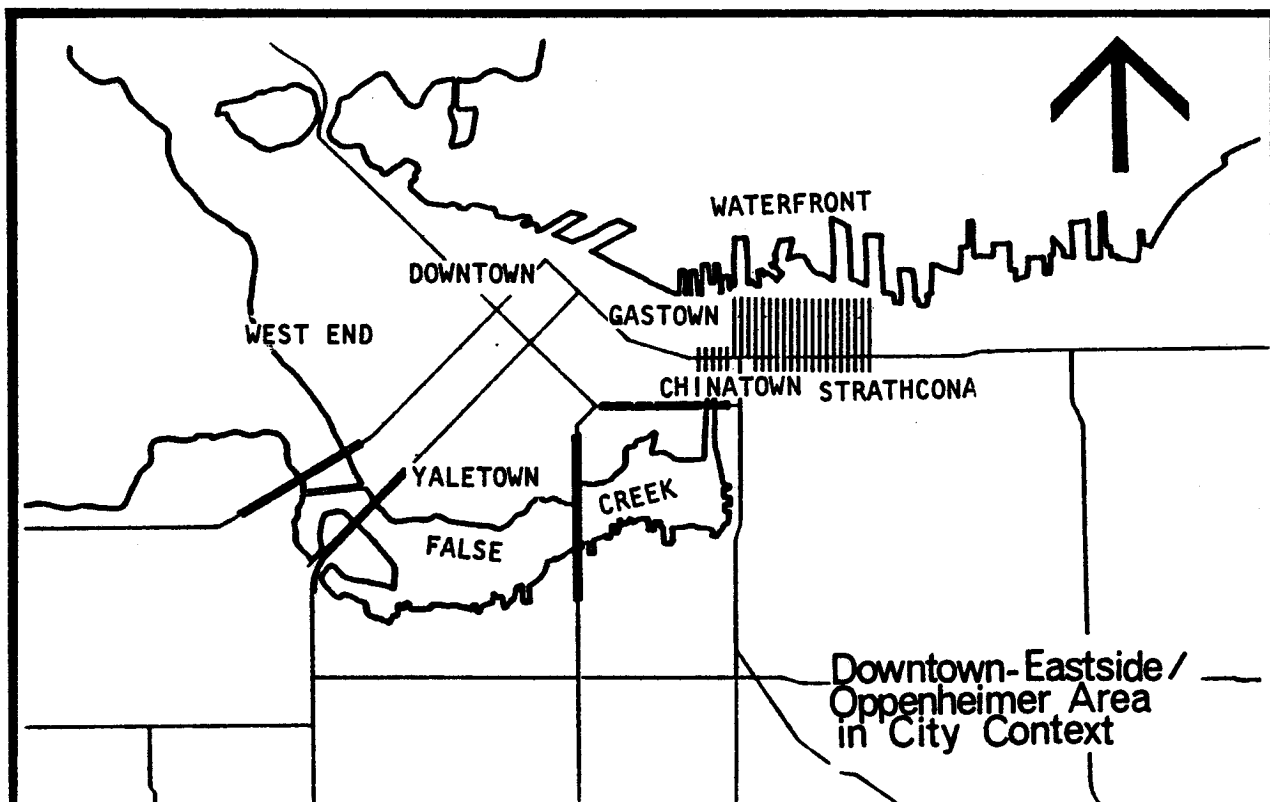
A By-law to regulate the development of that part of the City of Vancouver lying within the black line on the map below for which the Zoning District is described as "Downtown-Eastside/Oppenheimer District" (D E O D)



City of Vancouver
Planning Department
April 1982

CONTENTS

PREAMBLE		1
SECTION 1	Application and Intent	2
SECTION 2	Definitions	6
SECTION 3	Sub-Area Development Development Guidelines (General)	8
SECTION 4	Sub-Area 1 Main/Hastings	9
SECTION 5	Sub-Area 2 Cordova Street	18
SECTION 6	Sub-Area 3 Powell Street/ Japanese Village	23
SECTION 7	Sub-Area 4 Alexander/Powell	29



PREAMBLE

The Downtown-Eastside/Oppenheimer area, a small downtown neighbourhood surrounding Oppenheimer Park, is unique for its historic character, its ethnic diversity and its wide range and mix of land uses and buildings. It is bounded on the west by Gastown, on the south by Chinatown and Strathcona, on the north by the waterfront and on the east by an industrial district (see maps on facing page).

On February 3, 1981, Vancouver City Council adopted the Downtown-Eastside/Oppenheimer Policy Plan which describes the area and contains goals and policies addressing its social, physical, historical and economic issues.

To implement those policies in the Policy Plan related to land use and development, Council agreed that the zoning should be changed to an Official Development Plan in order to provide a decision-making process which permits greater citizen involvement, while recognizing the significance and uniqueness of the area in the overall City context. This document, the Downtown-Eastside/Oppenheimer Official Development Plan, along with a companion document on character area guidelines, will provide the guidance necessary for the development of specific sites in this area.

SECTION I

APPLICATION AND INTENT

1.1 GOALS

The following goals, established to form the basis for the planning and development of the Downtown-Eastside/Oppenheimer District, have been adopted by City Council as part of the Downtown-Eastside/Oppenheimer Policy Plan:

Housing

- 1) Retain existing and provide new affordable housing for the population of the Downtown-Eastside/Oppenheimer area.
- 2) Upgrade the quality of the existing housing stock to City standards.
- 3) Increase the proportion of self-contained dwelling units, through rehabilitation and new construction.

Commercial Uses

- 4) Improve the viability of commercial activity by encouraging the upgrading of existing commercial uses and the development of new commercial uses which serve both local residents and the large and growing working population in the area.

Industrial Uses

- 5) Retain existing industries and establish co-operative, positive liaison with industrial firms with a view to encouraging as high a standard of physical maintenance and general amenity, compatible with residential and other nearby uses, and consistent with operational validity.
- 6) Encourage new industries which are compatible with the mixed-use character of the area.

Non-Conforming Uses and Buildings

- 7) Reduce the negative effects of non-conforming uses and buildings, and phase them out over the long term.

Public Open Space/Views

- 8) Increase the amount of public open space and provide more outdoor recreation opportunities.
- 9) Enhance the public enjoyment of the waterfront and views to the North Shore and mountains.

Community Services/Facilities

- 10) Provide preventative health care and treatment services that meet the specialized neighbourhood needs.
- 11) Increase the level of public safety for residents, workers and visitors to the area.
- 12) Curtail the availability of alcoholic beverages, in view of the intimate connection between alcohol and violence in this area.
- 13) Encourage the provision of indoor recreation services.
- 14) Prohibit institutional uses and social service facilities which do not serve the immediate needs of the neighbourhood population.

Traffic, Transportation and Parking

- 15) Ensure a pattern of traffic movement within, through and adjacent to the Downtown-Eastside/Oppenheimer area that improves the character, pedestrian safety and quality of life in the area.
- 16) Encourage greater use of public transit by workers and local shoppers from outlying areas.
- 17) Discourage commuter parking.

Japanese-Canadian Community

- 18) Recognize the cultural contribution of the Japanese-Canadian community to the City of Vancouver and reinforce their historic identification with the Oppenheimer area.

Heritage Conservation

- 19) Preserve and enhance the heritage character of the Downtown-Eastside/Oppenheimer area and recognize its historical significance in the evolution of Vancouver.

Community Involvement

- 20) Ensure that Downtown-Eastside/Oppenheimer area residents, property owners, merchants, and workers are consulted on local planning and development matters and on the implementation of capital improvement projects.

1.2 THE OFFICIAL DEVELOPMENT PLAN

The Official Development Plan for the Downtown-Eastside/Oppenheimer area is intended to control and guide the development of all uses in that part of the City of Vancouver for which the Zoning District is described as "Downtown-Eastside/Oppenheimer District (DEOD)", as described on the map opposite page 1.

The Official Development Plan is intended to be used in conjunction with any policies and guidelines which Council may from time to time determine.

In order to provide effective guidance for the long-term development of the Downtown-Eastside/Oppenheimer area, the Plan should be reviewed from time to time to ensure that it accurately reflects the current public objectives. Such review should occur at least once every five years.

Section 1, Application and Intent, contains goals and describes the procedure for using this Development Plan for the Downtown-Eastside/Oppenheimer District.

Section 2, Definitions, contains definitions specific to this Development Plan.

Section 3, Sub-Area Development Guidelines (General), identifies four sub-areas within the Downtown-Eastside/Oppenheimer District.

Sections 4, 5, 6 and 7 are the specific Sub-Area Development Guidelines. These sections provide detailed guidance with respect to the four sub-areas which have been identified within the Downtown-Eastside/Oppenheimer District. These development guidelines, together with the overall goals in Section 1, and any other policies or guidelines which Council may approve, provide the necessary guidance for preparation of a development proposal within the various sub-areas.

1.3 INTERPRETATION

The Official Development Plan is subject to the interpretation of the Development Permit Board.

The goals as contained in Section 1 represent the basic philosophy in planning the Downtown-Eastside/Oppenheimer District. Further, Council has also adopted the Downtown-Eastside/Oppenheimer Policy Plan which contains those goals and expands them into more descriptive policies.

The Sub-Area Development Guidelines, as contained in Sections 4, 5, 6 and 7, represent the intent as to how the different sub-areas of the Downtown-Eastside/Oppenheimer District should be developed.

**1.4 DEVELOPMENT
PERMIT
APPLICATION**

Development permit applications shall be made in compliance with the provisions set out in the Zoning and Development By-law, No. 3575.

The Development Permit Board may at its discretion either approve, approve subject to conditions, or refuse development permit applications based on a review against the related goals, sub-area development guidelines, and any policies or guidelines which Council may from time to time determine.

Adjacent and nearby residents and property owners may be notified and asked for comment on development permit applications.

**1.5 RELAXATION
FOR
HERITAGE
MERIT**

The Development Permit Board may relax any of the provisions of this Plan where literal enforcement would not allow the restoration and renovation of sites with architectural, historical, or cultural merit. Before granting any relaxation pursuant to this subsection, the Development Permit Board shall ensure that:

- (a) the relaxations are requested by a person having legal interest in the site in order to conserve a building (or group of buildings) which is considered to have architectural, historical, or cultural value; and
- (b) a formal resolution is received from the Heritage Advisory Committee or any other body established by Council for this purpose defining the aspects of the site that give it heritage merit, and supporting the proposed conservation work; and
- (c) notification of adjoining property owners and residents is undertaken, in a manner that is determined appropriate by the Director of Planning, consideration is given to the responses received, and if there is significant objection, the matter be referred to Council; and
- (d) consideration is given to the policies and guidelines for the area in question as may be adopted by Council.

Unless the Development Permit Board otherwise directs, any relaxation granted under this subsection shall be valid only for as long as the building continues to exhibit those qualities as defined by the Heritage Advisory Committee in paragraph (b) above.

SECTION 2

DEFINITIONS

The definitions contained in Section 2 of the Zoning and Development By-law, No. 3575 shall apply to this Plan. The following definitions, extracted from Section 2 of the Zoning and Development By-law, No. 3575 are of particular relevance to this Plan.

- 2.1 Floor Space Ratio means the figure obtained when the area of all floors of all buildings on the site (measured to the extreme outer limits of the building) is divided by the area of the site;

Excluded from such calculations are:

- (a) parking areas, the floor of which is below the building grade of abutting streets or lanes as may be determined by the Development Permit Board;
- (b) balconies, canopies, or other architectural features which in the opinion of the Development Permit Board contribute to the amenity and/or environment of the Downtown-Eastside/Oppenheimer District;
- (c) patios or roof gardens provided that any sunroofs or walls are approved by Director of Planning.

Hotel means a building containing 16 or more sleeping or dwelling units, or a combination of both, used or equipped to be used as temporary accommodation for tourists or transients.

- 2.2 Special Needs Residential Facility means:

- (a) a Community Care Facility, which means a residential facility as defined in the Community Care Facilities Licencing Act, as amended; or
- (b) a Child Welfare Facility, which means any facility other than a Community Care Facility providing a group living arrangement for more than five children in the care of the Superintendent of Child Welfare; or
- (c) a Group Living Facility, which means a facility other than a Community Care Facility, for more than five physically disabled, mentally retarded or psychiatrically disabled persons, or persons with drug or alcohol problems, or persons who are under the legal custody of the Crown, or persons with other living problems, and which provides lodging and food and is developed for the rehabilitation of its residents through self-help or through professional care, guidance or supervision.

The following definitions refer to terms used in this Official Development Plan and supplement definitions included in the Zoning and Development By-law.

- 2.3 Habitable Room means any room in a dwelling unit used or intended to be used for living, sleeping, cooking or eating purposes.
- 2.4 Residential means sleeping units, housekeeping units, one or two family dwellings, apartments, townhouses, boarding houses and rooming houses, but excludes a Special Needs Residential Facility.
- 2.5 Retail Continuity means the provision and permanent maintenance of continuous pedestrian oriented retail store type display windows or other equal and suitable display as may be approved by the Development Permit Board.
- 2.6 Social Housing means residential units, purchased by a government or non-profit housing group using available government funding, for housing senior citizens, handicapped persons or individuals or families of low income.

SECTION 3

SUB-AREA DEVELOPMENT GUIDELINES (GENERAL)

3.1 INTENT

The Sub-Area Development Guidelines provide more detailed guidance with respect to the development of the four sub-areas which have been identified within the Downtown-Eastside/Oppenheimer District.

Sub-Area 1: Main/Hastings

Sub-Area 2: Cordova Street

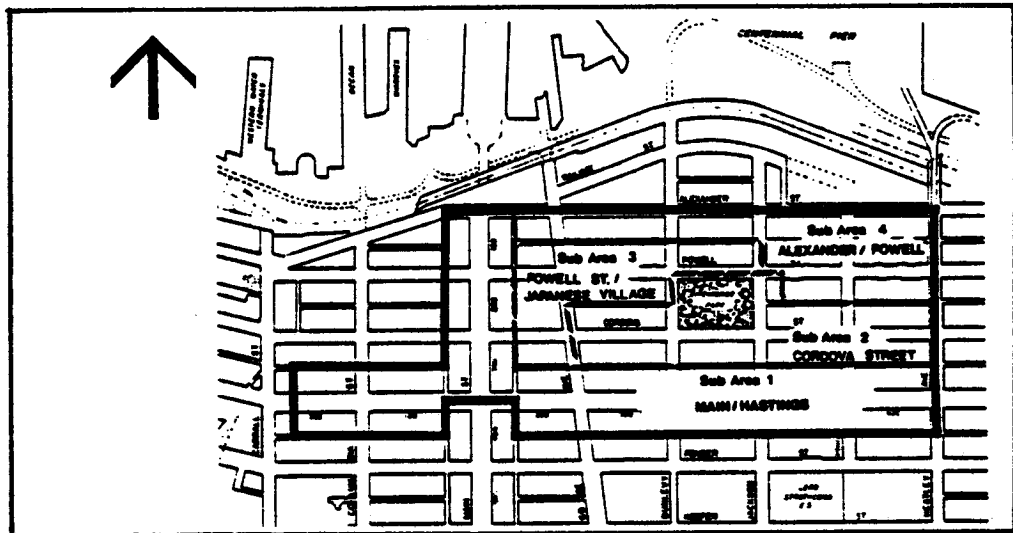
Sub-Area 3: Powell Street/Japanese Village

Sub-Area 4: Alexander/Powell

The sub-areas are shown on the map below. Identification of these four sub-areas is based on:

- (a) existing land uses;
- (b) relationship to existing nearby character areas of Downtown, Gastown, Chinatown and the Strathcona neighbourhood;
- (c) projected future land uses.

3.2 INTERPRETATION The Sub-Area Development Guidelines are all mandatory in the sense that any development permit application shall be measured against them. Flexibility and innovation are encouraged in the preparation of development proposals, and a significant degree of discretion is hereby given to the Development Permit Board in the interpretation of policies. In all instances, approval of a development permit application shall be subject to the form, location and any special characteristics being in conformity with the intent of this Plan, any other policies or guidelines adopted by Council from time to time, and to such other conditions and regulations not inconsistent therewith which the Development Permit Board in its discretion may prescribe.



SECTION 4

SUB-AREA I MAIN/HASTINGS

4.1 INTENT

The development of the Main/Hastings sub-area, outlined on Map 1, should further establish its importance as a gateway to the Downtown, and help to clarify the functions of the adjacent Historic Areas of Gastown and Chinatown and the Oppenheimer and Strathcona residential neighbourhoods.

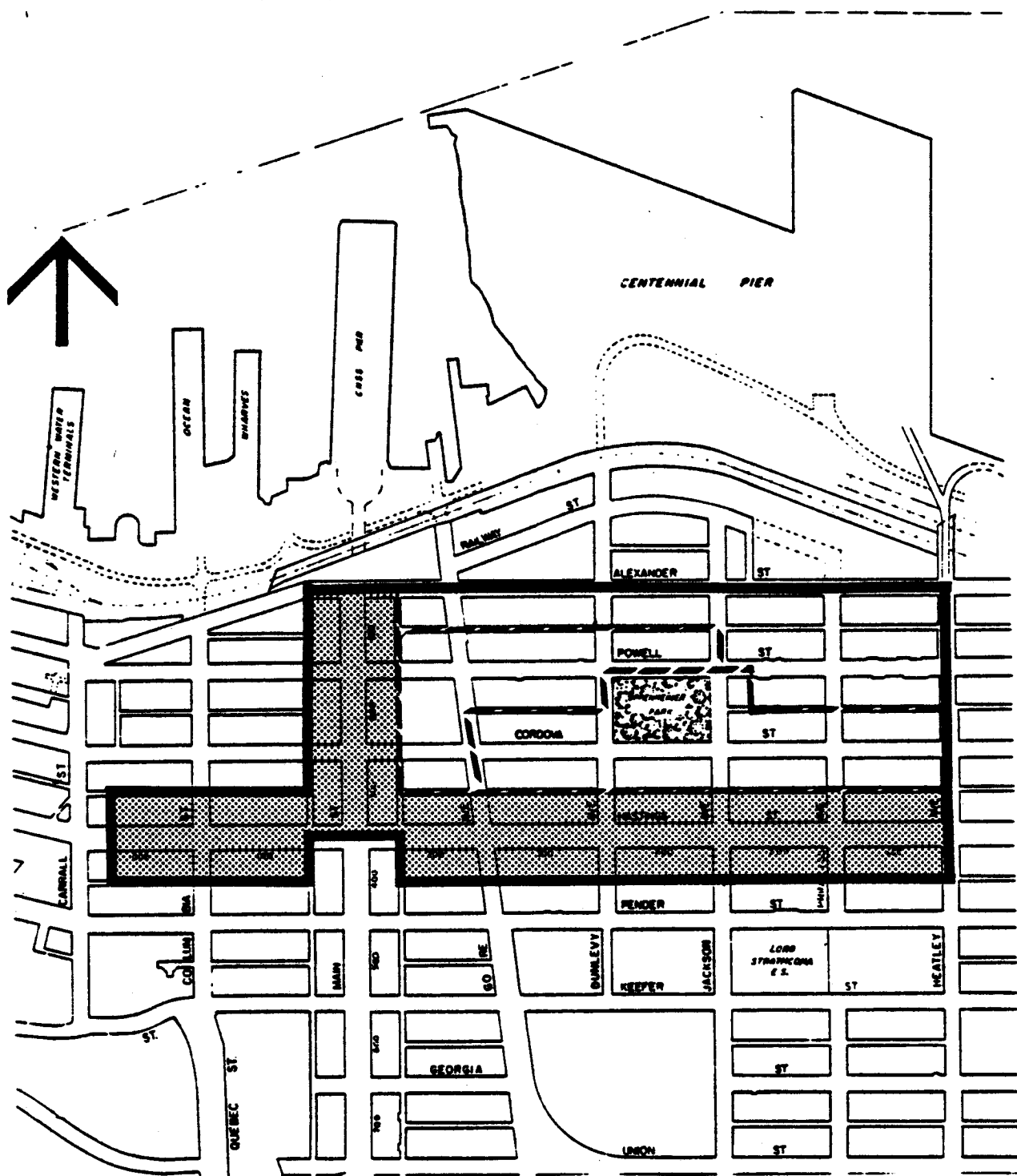
Therefore, this area is intended to be a high-density, mixed commercial and residential area, appropriate for a mix of office, retail, local social services, and other similar uses. Residential uses are also permitted. Pedestrian-oriented uses, primarily retail and restaurant, are encouraged at ground level with an emphasis on continuity of facade and narrow frontages for individual uses on Main Street from Hastings to Cordova and along Hastings Street from Carrall to approximately Dunlevy.

The retention and upgrading of existing multi-unit residential buildings is encouraged. The development of new residential units on upper floors of buildings is encouraged through a floor space bonus system. Special design measures, however, should be undertaken to mitigate the air and noise pollution problems.

4.2 USES

The following uses, and others accessory thereto, may be permitted, subject to the CONDITIONS OF USE and to such conditions or regulations as may be prescribed by the Development Permit Board:

- (a) Office commercial, except that:
 - (i) on the ground floor, any office commercial use shall be limited to a financial, insurance, medical-dental or real estate office; and
 - (ii) on floors above the ground floor, construction for office commercial use shall only be permitted if a minimum of 50 percent of the floor area created after April 20, 1982 is developed for residential purposes.
- (b) Retail commercial, including restaurants.
- (c) Other commercial, including, but not necessarily limited to, a business or vocational school, a drama or dance academy, a billiard hall, bowling alley, steam bath, photography studio, theatre, artists studio, or sign or showcard painting.
- (d) Residential, with an emphasis on self-contained units, but excluding a new Special Needs Residential Facility.



Sub Area 1 MAIN / HASTINGS

Vancouver City Planning Department



MAP NO.

1

- (e) Light industrial, including, but not necessarily limited to the following, provided that all manufacturing and storage takes place within a wholly enclosed building, and provided that the Development Permit Board is satisfied that the use is compatible with the mixed use character of the area:

Lithography; printing; publishing; warehousing; wholesaling; food or beverage product manufacturing (but not involving the milling of grain, rice, malt; the refining of sugar; the refining of vegetable oil or fat; the brewing or distilling of alcoholic beverages; the processing of fats, bones, hides, skins, offal, or animal products of a like nature; the use of fish; or the use of live animals or live poultry); manufacturing of miscellaneous light products, including brooms or brushes; jewelry or silverware; musical instruments; novelties, decorations or ornaments; scientific or professional equipment; signs or displays; stationery supplies or office supplies; toys; window shades or blinds.

- (f) Building or uses required to serve the educational, cultural, health, social or recreational needs of the local community.
- (g) Any other use which is not specifically listed herein, but which the Development Permit Board considers comparable in nature, having regard to the intent, goals and policies of this Plan.

4.3 CONDITIONS OF USE

The following conditions of use, in addition to such other conditions as the Development Permit Board may decide, shall apply:

- (a) no office or other commercial use shall be permitted where it would result from the conversion from any hotel or residential use existing as of April 20, 1982.

4.4 RETAIL CONTINUITY

Where indicated on Map 2, only retail and similar uses shall be permitted on the ground floor along the street frontage so identified; and shall be encouraged on the other street frontages so identified.

4.5 DENSITY

The maximum density for any development shall be a floor space ratio of 1.0, except that the Development Permit Board may permit an increase in the maximum density provided that:

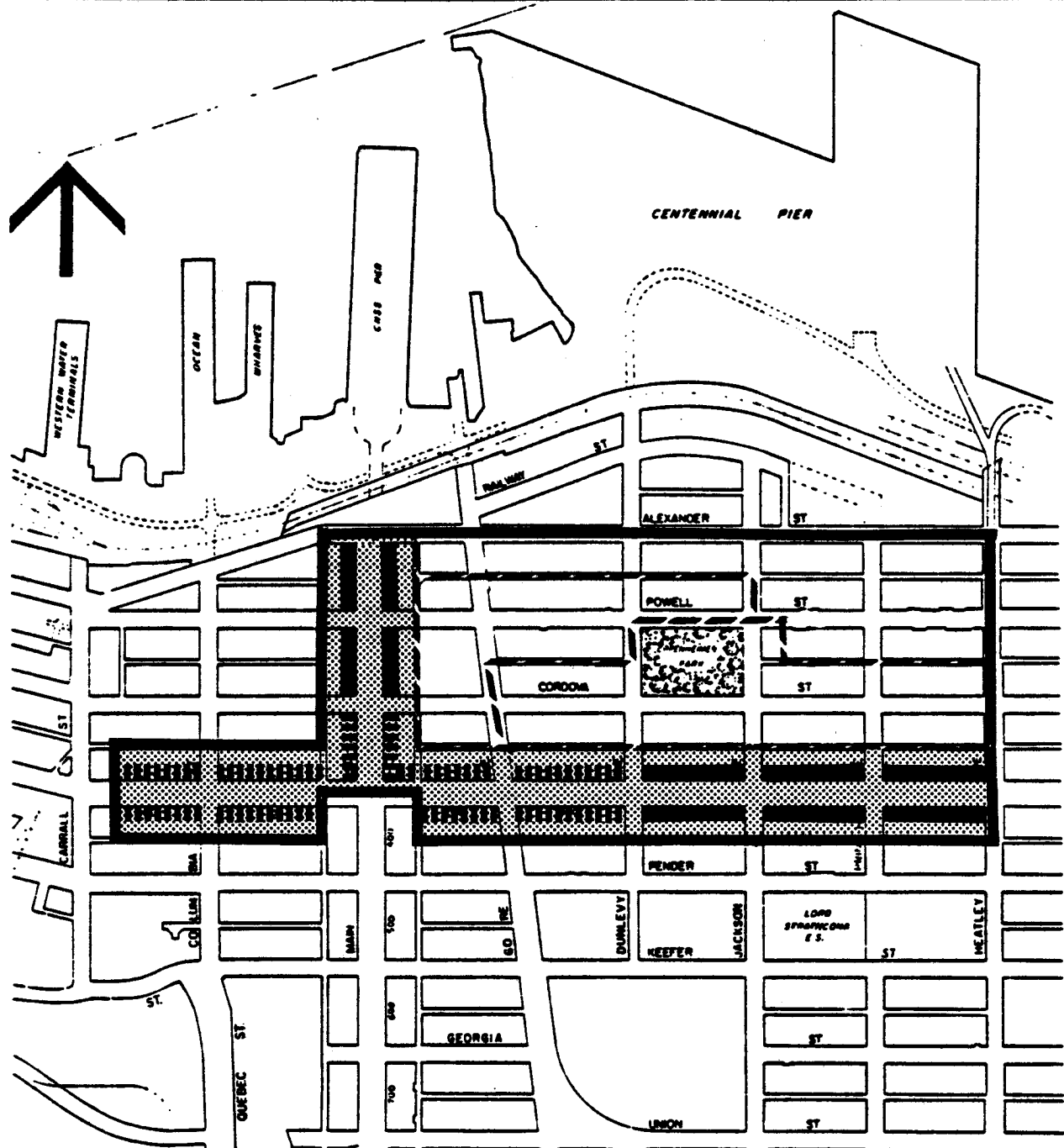
Retail Continuity



ONLY RETAIL AND SIMILAR USES PERMITTED ON THE GROUND FLOOR

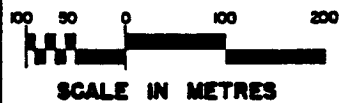


RETAIL AND SIMILAR USES ENCOURAGED ON THE GROUND FLOOR



Sub Area 1
MAIN / HASTINGS

Vancouver City Planning Department

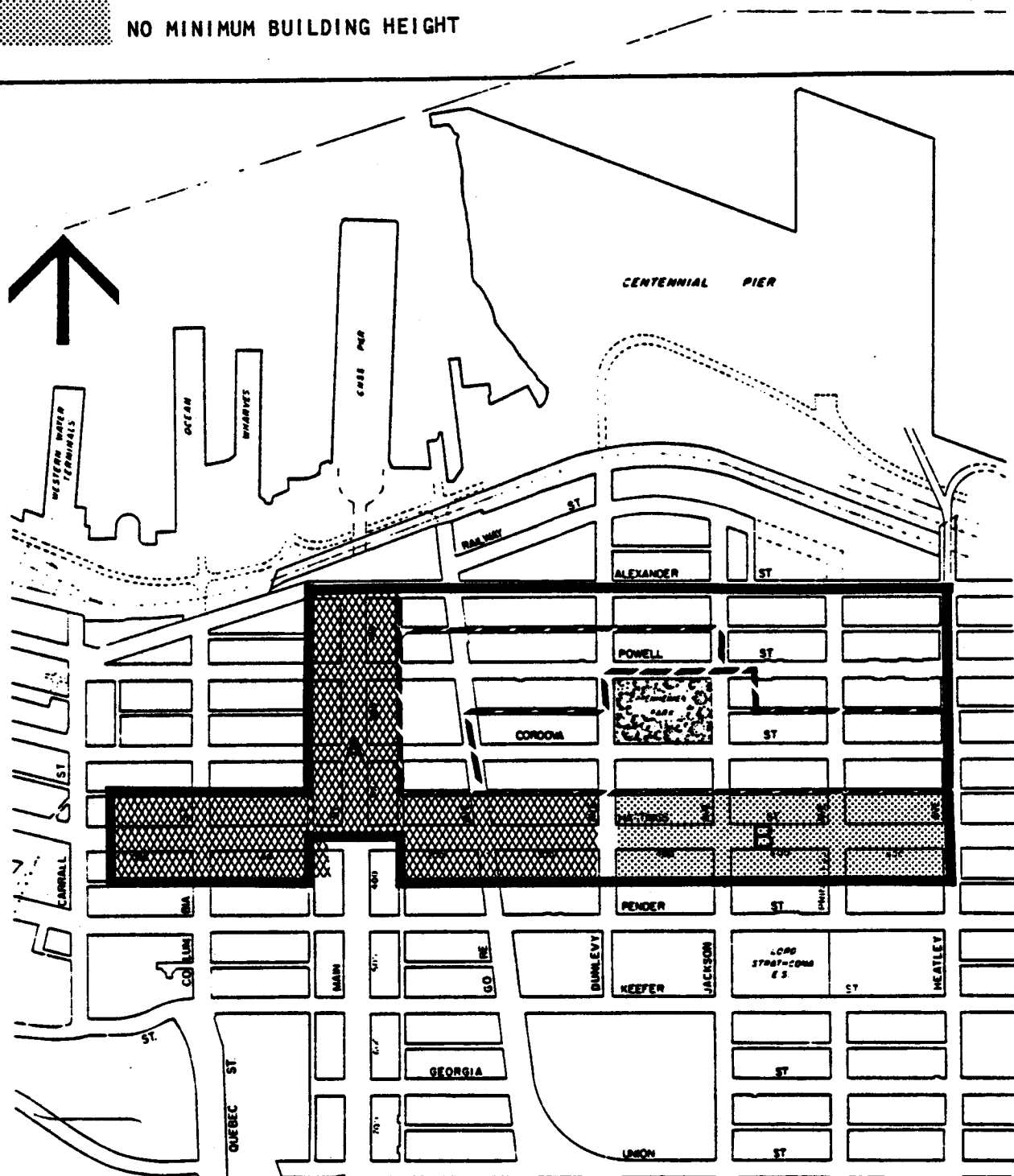


MAP NO.

2

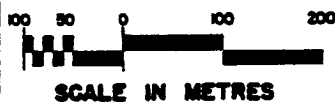
Minimum Building Heights

- A**  MINIMUM BUILDING HEIGHT - 11 METRES
- B**  NO MINIMUM BUILDING HEIGHT



**Sub Area 1
MAIN / HASTINGS**

Vancouver City Planning Department



MAP NO.

3

- (a) any floor area, above a floor space ratio of 1.0, created after April 20, 1982:
 - (i) for non-residential use;
 - (ii) for residential floor area and resulting in more than 4 additional units; or
 - (iii) from the conversion of sleeping, housekeeping or hotel units to dwelling units;

shall only be permitted if at least 20 percent of the floor area permitted above a floor space ratio of 1.0, or at least 20 percent of the additional residential units, is developed for social housing;
- (b) the residential floor area shall not, in any case, exceed a floor space ratio of 3.0;
- (c) the non-residential floor area may be permitted to exceed a floor space ratio of 3.0 only if any increase above 3.0 is matched by at least an equal amount of residential floor area, but the total floor space ratio permitted under this clause shall not, in any case, exceed 5.0.

4.6 PHYSICAL FORM

4.6.1 Height

The minimum height of a building within the area denoted by the letter "A" on Map 3 shall be 11 meters (approximately 36 feet; approximately three storeys). The maximum height of a building within the total Main/Hastings sub-area shall be 30 meters (approximately 98 feet; approximately eight storeys).

The Development Permit Board may permit an increase or decrease in the maximum or minimum height of a building with respect to any development provided it first consults with any advisory group approved by Council for the area and takes into account the following:

- (a) the height, bulk and location of the building and its effect on the site, surrounding buildings and streets, and existing views:
- (b) the effects of overall design on the general amenity of the area; and
- (c) the intent of this Plan and the recommendations of any advisory groups policy plan or guidelines approved by Council for the area.

4.6.2 Frontage

Not applicable.

4.6.3 Front Yard

Not applicable.

4.6.4. Side Yard

No side yard shall be required, except that where a site abuts an existing residential building with any window lighting a habitable room, any facing wall of a new building shall be set back an adequate distance to ensure light and ventilation to the existing habitable rooms, in accordance with guidelines adopted by City Council.

4.7 PARKING AND LOADING

Off-street parking shall not be required for any ground floor retail and similar use in the area where only these types of uses are permitted as outlined on Map 2.

The provision of parking facilities may not be required with developments; however, where parking is provided it shall be subject to the following conditions and regulations:

- (a) Office commercial and residential - not more than one parking space for every 93 square meters (approximately 1,000 square feet) of such uses.
- (b) Other permitted uses - not more than the requirements set out for such uses in Section 12 of the Zoning and Development By-law, No. 3575, unless otherwise determined by the Development Permit Board.

The provision of loading spaces for all uses, shall be in accordance with the provisions of Section 12 of the Zoning and Development By-law, No. 3575, unless otherwise determined by the Development Permit Board.

4.8 SOCIAL AND RECREATIONAL FACILITIES

- 4.8.1 It is the purpose of this Section to provide in the Downtown-Eastside/Oppenheimer area the following social and recreational amenities for the enjoyment of Downtown-Eastside/Oppenheimer residents and employees:

- (a) facilities which provide opportunities for physical fitness;
- (b) facilities for general recreation;
- (c) facilities which provide a service to the public.

Facilities or areas which contribute to physical amenity, such as parks, plazas, arcades or ornamental elements in the landscape, are not included in this Section. Provision of these items and others of a similar nature may be required by the Development Permit Board where appropriate, as part of the design of the building.

4.8.2 Amenities Excluded from Floor Space Ratio

The following amenities and facilities are excluded from the FSR limitation provided that their area does not exceed 20% of the allowable FSR or 929 square meters (approximately 10,000 square feet) whichever is the lesser.

- (a) saunas
- (b) tennis courts
- (c) swimming pools
- (d) squash or racquet courts
- (e) gymnasiums and workout rooms
- (f) games rooms and hobby rooms
- (g) day care centers
- (h) other similar or related indoor uses of a social or recreational nature which in the opinion of the Development Permit Board are a type which contribute to social amenity.

4.8.3 Bonuses for a Provision of Social and Recreational Amenities

Where a need for any public, social or recreational facility has been demonstrated to the satisfaction of the Development Permit Board, the Board may authorize, for any building which includes one or more of such facilities, an increase in the permitted floor space ratio or density of a building, subject to prior approval by City Council.

In determining the increase in floor area or density that may be authorized, the Development Permit Board shall consider:

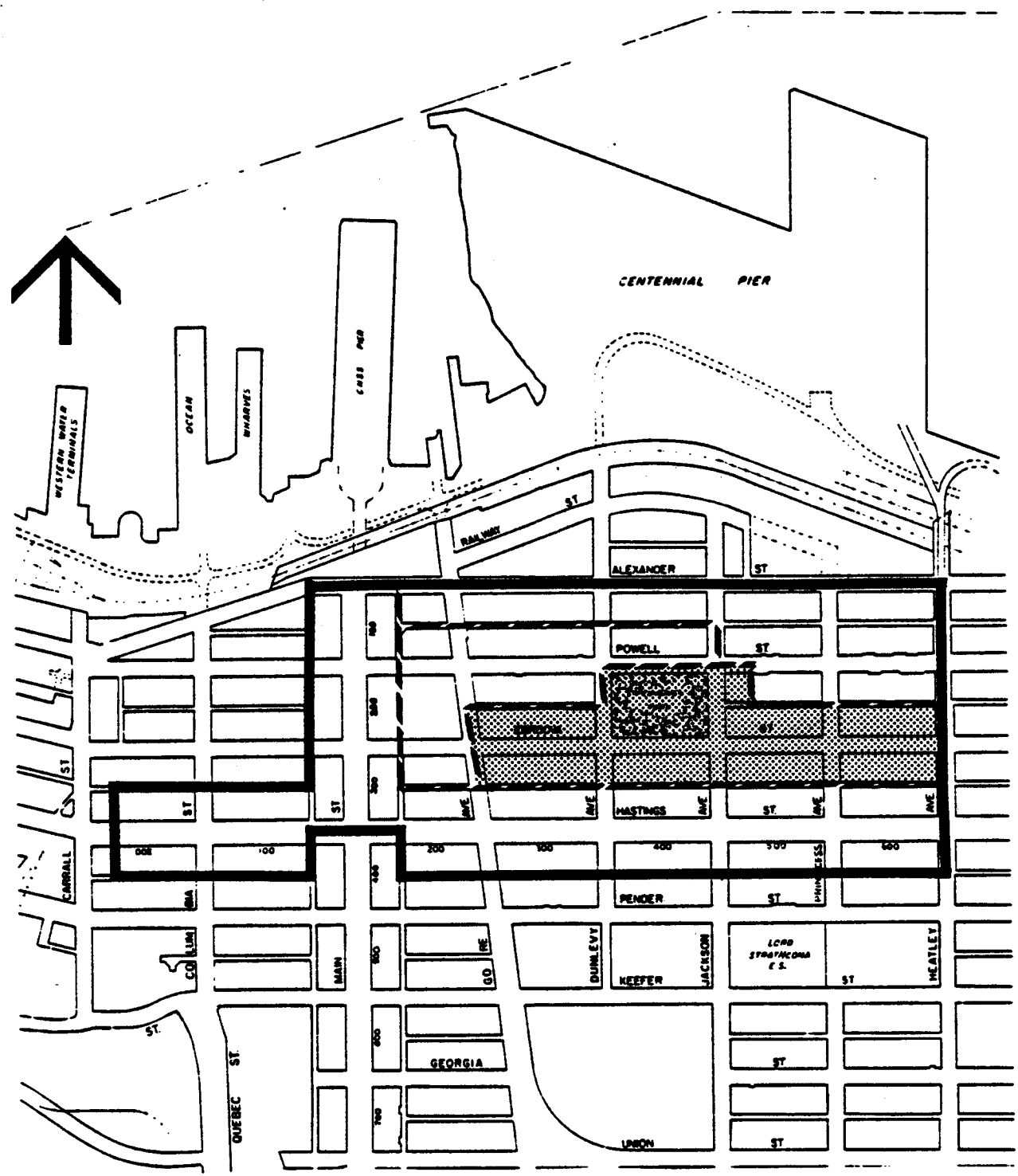
- (a) the construction cost of the facility;
- (b) any costs to the developer of continuing maintenance required for the facility;
- (c) the rental value of the increased floor area;
- (d) the value of any authorized relaxations of other restrictions.

If appropriate, such facilities shall be preserved in the public domain by way of a registered agreement and operated by the City or its delegates.

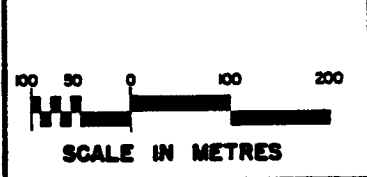
SECTION 5

SUB-AREA 2 CORDOVA STREET

- 5.1 INTENT The Cordova Street sub-area, outlined on Map 4, is intended to be a medium density residential area, suitable for residential development for a variety of household types. Rehabilitation of existing residential buildings is encouraged. To upgrade the standard of accommodation available, new units should be self-contained and rehabilitated sleeping and housekeeping units should be converted to self-contained dwelling units where possible.
- 5.2 USES The following uses, and others accessory thereto, may be permitted, subject to the CONDITIONS OF USE and to such conditions or regulations as may be prescribed by the Development Permit Board:
- (a) Residential, with an emphasis on self-contained units, but excluding a new Special Needs Residential Facility.
 - (b) Buildings or uses required to serve the educational, cultural, health, social or recreational needs of the local community.
 - (c) Any other use which is not specifically listed herein, but which the Development Permit Board considers comparable in nature, having regard to the intent, goals and policies of this Plan.
- 5.3 CONDITIONS OF USE
- Not applicable
- 5.4 RETAIL CONTINUITY
- Not applicable
- 5.5 DENSITY The maximum density for any development shall be a floor space ratio of 1.0, except that the Development Permit Board may permit an increase in the maximum density provided that:
- (a) any floor area, above a floor space ratio of 1.0, created after April 20, 1982:
 - (i) for non-residential use;



Sub Area 2
CORDOVA ST.
 Vancouver City Planning Department



MAP NO.
4

(ii) for residential floor area and resulting in more than 4 additional units; or

(iii) from the conversion of sleeping, housekeeping or hotel units to dwelling units;

shall only be permitted if at least 20 percent of the floor area permitted above a floor space ratio of 1.0, or at least 20 percent of the additional residential units, is developed for social housing;

(b) the floor area shall not, in any case, exceed a floor space ratio of 2.5.

5.6

PHYSICAL FORM

5.6.1 Height

The maximum height shall be 15 meters (approximately 49 feet; approximately four storeys).

The Development Permit Board may permit an increase in the maximum height of a building with respect to any development provided it first consults with any advisory group approved by Council for the area and takes into account the following:

- (a) the height, bulk and location of the building and its effect on the site, surrounding buildings and street, and existing views;
- (b) the effects of overall design on the general amenity of the area; and
- (c) the intent of this Plan and the recommendations of any advisory groups, policy plan or guidelines approved by Council for the area.

5.6.2 Frontage

Not applicable.

5.6.3 Front Yard

A minimum front yard of 3 meters (approximately 10 feet) shall be provided. However, the Development Permit Board may relax or increase this requirement for all or a portion of the frontage provided it takes into account the depths of the adjacent front yards.

5.6.4 Side Yard

No side yard shall be required, except that where a site abuts an existing residential building with any window lighting a habitable room, any facing wall of a new building shall be set back an adequate distance to ensure light and ventilation to the existing habitable rooms, in accordance with guidelines adopted by City Council.

- 5.7 PARKING AND LOADING Off-street parking and loading shall be provided and maintained in accordance with the provisions of Section 12 of the Zoning and Development By-law, No. 3575, unless otherwise determined by the Development Permit Board.

5.8 SOCIAL AND RECREATIONAL FACILITIES

- 5.8.1 It is the purpose of this Section to provide in the Downtown-Eastside/Oppenheimer area the following social and recreational amenities for the enjoyment of Downtown-Eastside/Oppenheimer residents and employees:

- (a) facilities which provide opportunities for physical fitness;
- (b) facilities for general recreation;
- (c) facilities which provide a service to the public.

Facilities or areas which contribute to physical amenity, such as parks, plazas, arcades or ornamental elements in the landscape, are not included in this Section. Provision of these items and others of a similar nature may be required by the Development Permit Board where appropriate, as part of the design of the buildings.

5.8.2 Amenities Excluded from Floor Space Ratio

The following amenities and facilities are excluded from the FSR limitation provided that their area does not exceed 20% of the allowable FSR or 929 square meters (approximately 10,000 square feet) whichever is the lesser:

- (a) saunas
- (b) tennis courts
- (c) swimming pools
- (d) squash or racquet courts
- (e) gymnasiums and workout rooms
- (f) games rooms and hobby rooms
- (g) day care centers
- (h) other similar or related indoor uses of a social or recreational nature which in the opinion of the Development Permit Board are of a type which contribute to social amenity.

5.8.3 Bonuses for a Provision of Social and Recreational Amenities

Where a need for any public, social or recreational facility has been demonstrated to the satisfaction of the Development Permit Board, the Board may authorize, for any building which includes one or more of such facilities, an increase in the permitted floor space ratio or density of a building, subject to prior approval by City Council.

In determining the increase in floor area or density that may be authorized, the Development Permit Board shall consider:

- (a) the construction cost of the facility;
- (b) any costs to the developer of continuing maintenance required for the facility;
- (c) the rental value of the increased floor area;
- (d) the value of any authorized relaxations of other restrictions.

If appropriate, such facilities shall be preserved in the public domain by way of a registered agreement and operated by the City or its delegates.

SECTION 6

SUB-AREA 3 POWELL STREET/JAPANESE VILLAGE

6.1 INTENT

The Powell Street/Japanese Village sub-area, outlined on Map 5, is intended to be a medium density mixed commercial-residential area, appropriate for retail, restaurant and other similar pedestrian-oriented uses at street level, and residential, commercial and office uses on upper floors. This sub-area should continue to provide shopping facilities which serve the day-to-day needs of local residents and workers.

The 300 and 400 blocks of Powell are also intended to be the core of the Japanese Village character area. Developments which recognize the area's unique ethnic history and which enhance its historical, architectural and cultural character are encouraged.

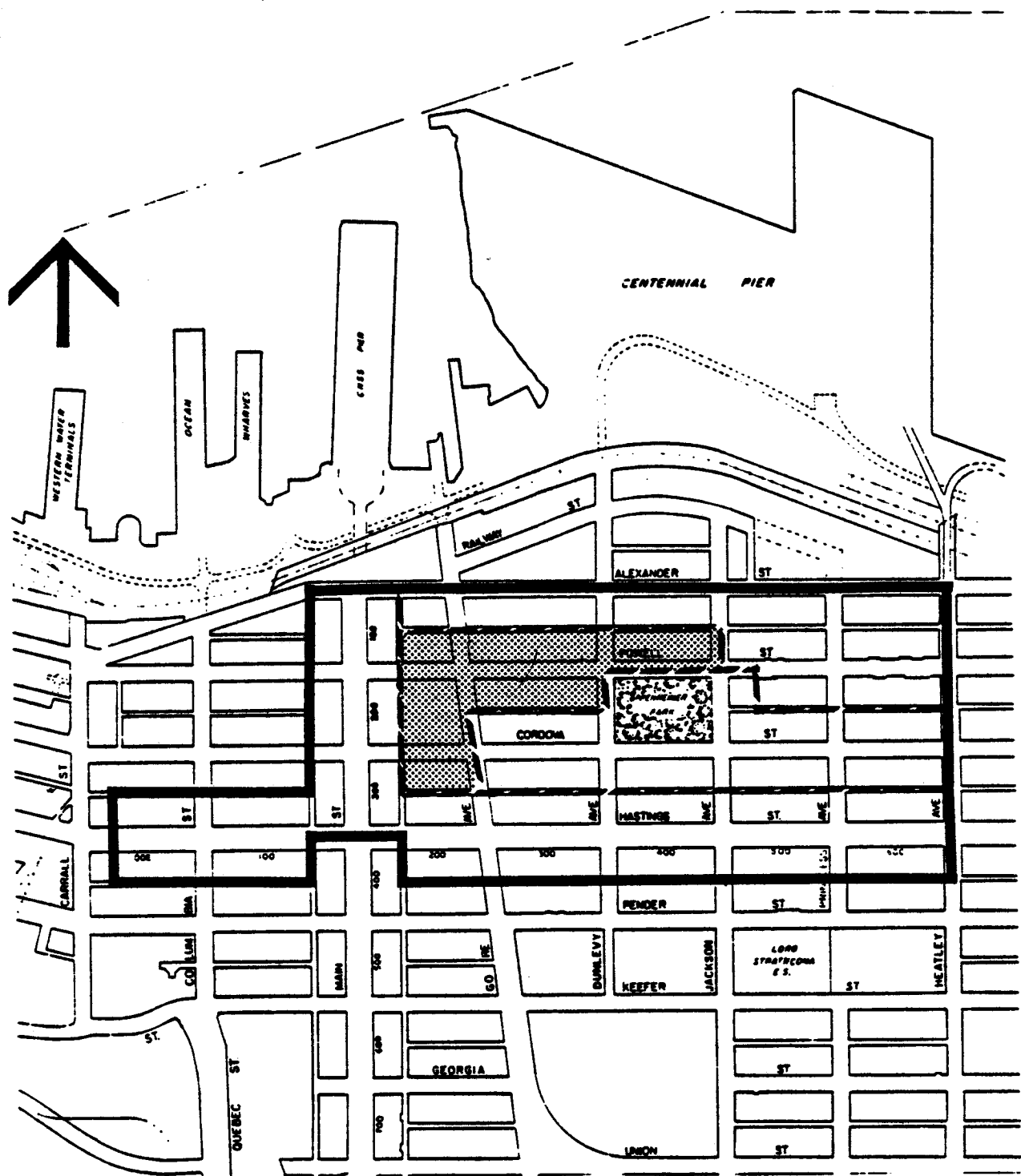
6.2 USES

The following uses, and others accessory thereto, may be permitted, subject to the CONDITIONS OF USE and to such conditions or regulations as may be prescribed by the Development Permit Board:

- (a) Office commercial, except that no office shall be permitted on the ground floor except for a financial, insurance, medical-dental, real estate or local area office.
- (b) Retail commercial, including restaurants.
- (c) Other commercial, including but not necessarily limited to a photography studio, bakery with retail sales on the premises, barber or beauty shop, or artists studio.
- (d) Residential, with an emphasis on self-contained units, but excluding a new Special Needs Residential Facility.
- (e) Buildings or uses required to serve the educational, cultural, health, social or recreational needs of the local community.
- (f) Any other use, including accessory wholesaling or manufacturing of dry goods or food and beverage products, which involves retail sales on the premises and which creates pedestrian interest along the street, providing that all manufacturing and storage takes place within a wholly enclosed building.
- (g) Any other use which is not specifically listed herein, but which the Development Permit Board considers comparable in nature, having regard to the intent, goals and policies of this Plan.

6.3 CONDITIONS OF USE

Not Applicable



Sub Area 3 POWELL ST. /
JAPANESE VILLAGE
Vancouver City Planning Department



MAP NO.

5

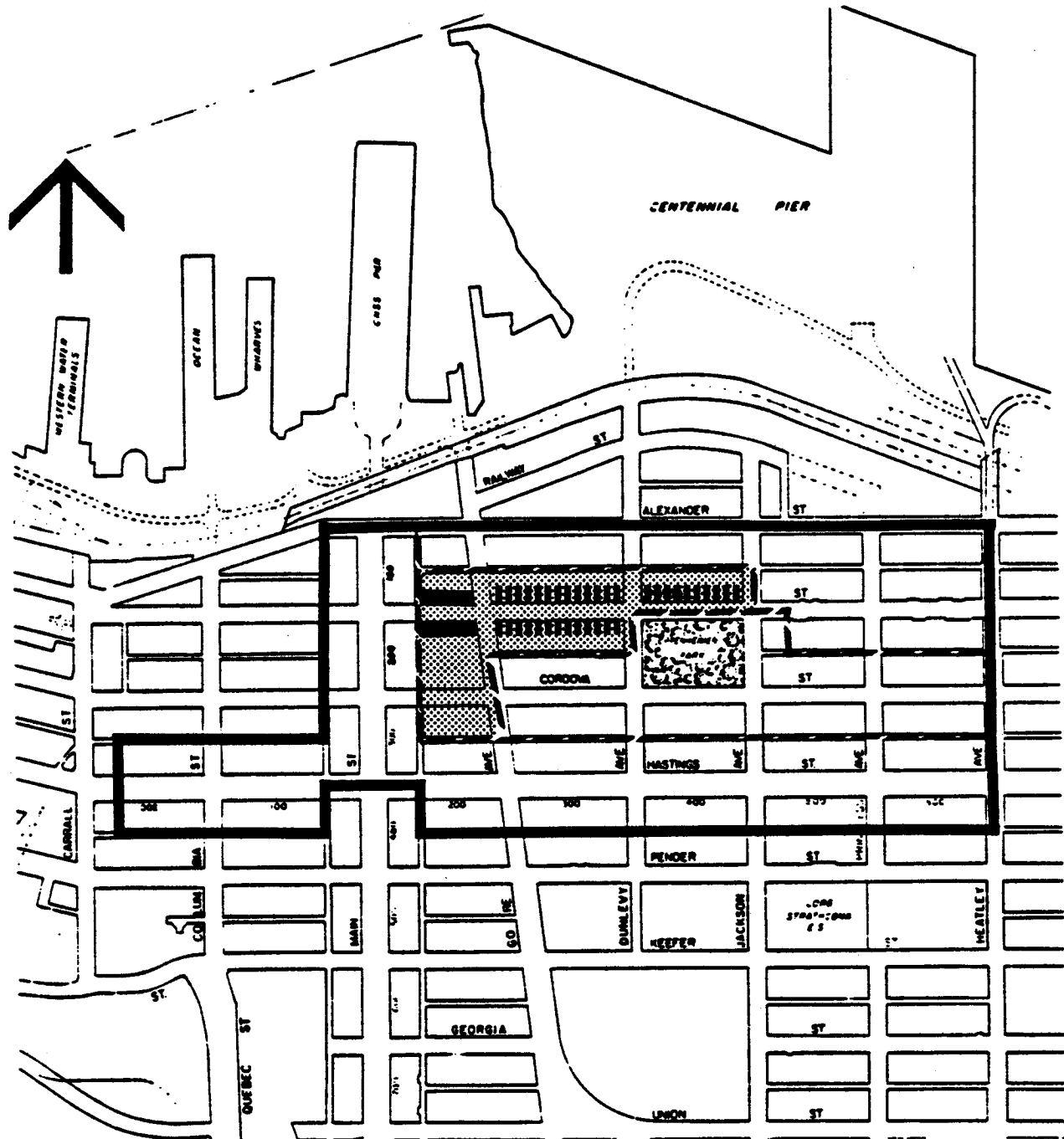
Retail Continuity



ONLY RETAIL AND SIMILAR USES PERMITTED ON THE GROUND FLOOR



RETAIL AND SIMILAR USES ENCOURAGED ON THE GROUND FLOOR



Sub Area 3 POWELL ST. /
JAPANESE VILLAGE
Vancouver City Planning Department



MAP NO.

6

6.4 RETAIL
CONTINUITY

Where indicated on Map 6, only retail and similar uses shall be permitted on the ground floor along the street frontages so identified; and shall be encouraged on the other street frontages so identified.

6.5 DENSITY

The maximum density for any development shall be a floor space ratio of 1.0, except that the Development Permit Board may permit an increase in the maximum density provided that:

- (a) any floor area, above a floor space ratio of 1.0, created after April 20, 1982:
 - (i) for non-residential use;
 - (ii) for residential floor area and resulting in more than 4 additional units; or
 - (iii) from the conversion of sleeping, housekeeping or hotel units to dwelling units;

shall only be permitted if at least 20 percent of the floor area permitted above a floor space ratio of 1.0, or at least 20 percent of the additional residential units, is developed for social housing;

- (b) the floor area shall not, in any case, exceed a floor space ratio of 2.5.

6.6

6.6.1 Height

The minimum height of a building within this sub-area shall be 7 meters (approximately 23 feet; approximately two storeys). The maximum height shall be 15 meters (approximately 49 feet; approximately four storeys).

The Development Permit Board may permit an increase or decrease in the maximum or minimum height of a building with respect to any development provided it first consults with any advisory group approved by Council for the area and takes into account the following:

- (a) the height, bulk and location of the building and its effect on the site, surrounding buildings and streets, and existing views;
- (b) the effects of overall design on the general amenity of the area; and

- (c) the intent of this Plan and the recommendations of any advisory groups, policy plan or guidelines approved by Council for the area.

6.6.2 Frontage

The maximum length of frontage for any use in those areas where only retail and similar uses are permitted as shown on Map 6, shall be 15.5 meters (approximately 50 feet) except that the Development Permit Board may permit relaxations when a pedestrian area such as a courtyard or resting area is provided, or where pedestrian interest is otherwise maintained.

6.6.3 Front Yard

Not applicable.

6.6.4 Side Yard

No side yard shall be required, except that where a site abuts an existing residential building with any window lighting a habitable room, any facing wall of a new building shall be set back an adequate distance to ensure light and ventilation to the existing habitable rooms, in accordance with guidelines adopted by City Council.

- 6.7 **PARKING AND LOADING** Off-street parking and loading shall be provided and maintained in accordance with the provisions of Section 12 of the Zoning and Development By-law, No. 3575, unless otherwise determined by the Development Permit Board.

6.8 **SOCIAL AND RECREATIONAL FACILITIES**

- 6.8.1 It is the purpose of this Section to provide in the Downtown-Eastside/Oppenheimer area the following social and recreational amenities for the enjoyment of Downtown-Eastside/Oppenheimer residents and employees:

- (a) facilities which provide opportunities for physical fitness;
- (b) facilities for general recreation;
- (c) facilities which provide a service to the public.

Facilities or areas which contribute to physical amenity, such as parks, plazas, arcades or ornamental elements in the landscape, are not included in this Section. Provision of these items and others of a similar nature may be required by the Development Permit Board where appropriate, as part of the design of the buildings.

6.8.2 Amenities Excluded from Floor Space Ratio

The following amenities and facilities are excluded from the FSR limitation provided that their area does not exceed 20% of the allowable FSR or 929 square meters (approximately 10,000 square feet) whichever is the lesser:

- (a) saunas
- (b) tennis courts
- (c) swimming pools
- (d) squash or racquet courts
- (e) gymnasiums and workout rooms
- (f) games rooms and hobby rooms
- (g) day care centers
- (h) other similar or related indoor uses of a social or recreational nature which in the opinion of the Development Permit Board are of a type which contribute to social amenity.

6.8.3 Bonuses for a Provision of Social and Recreational Amenities

Where a need for any public, social or recreational facility has been demonstrated to the satisfaction of the Development Permit Board, the Board may authorize, for any building which includes one or more of such facilities, an increase in the permitted floor space ratio or density of a building, subject to prior approval by City Council.

In determining the increase in floor area or density that may be authorized, the Development Permit Board shall consider:

- (a) the construction cost of the facility;
- (b) any costs to the developer of continuing maintenance required for the facility;
- (c) the rental value of the increased floor area;
- (d) the value of any authorized relaxations of other restrictions.

If appropriate, such facilities shall be preserved in the public domain by way of a registered agreement and operated by the City or its delegates.

SECTION 7

SUB-AREA 4 ALEXANDER / POWELL

7.1 INTENT The Alexander-Powell sub-area outlined on Map 7 is intended to be a medium density, mixed industrial-residential area, appropriate for small scale light industrial uses and residential uses. New industry, and expansion of existing industry, should be compatible with nearby and adjacent residential uses.

7.2 USES The following uses, and others accessory thereto, may be permitted, subject to the CONDITIONS OF USE and to such conditions or regulations as may be prescribed by the Development Permit Board:

- (a) Light industrial uses, as follows, provided that the Development Permit Board is satisfied that the use is compatible with the mixed use character of the area in terms of risk of fire, explosion or contamination; air pollution; traffic and truck generation; noise pollution; and form, scale and appearance of the development:

Brooms or brushes; manufacturing of.

Chemical products; manufacturing of, but including the manufacturing of pharmaceuticals only.

Cleaning or Janitorial Service.

Clothing or garments; manufacturing of.

Cold Storage Plant.

Cosmetics and toilet preparations; manufacturing of.

Electrical products; manufacturing of.

Film Exchange.

Food or beverage products; manufacturing of, but not involving the milling of grain, rice or malt; the refining of sugar; the refining of vegetable oil or fat; the brewing or distilling of alcoholic beverages; the processing of fats, bones, hides, skins, offal, or animal products of a like nature; the use of fish; or the use of live animals or live poultry.

Jewelry or silverware; manufacturing of.

Laboratory, but not including a medical or dental laboratory.

Laundering, cleaning or dyeing of textiles, knit goods, clothing or garments.

Lithographing or printing.

Luggage, handbags or small leather goods; manufacturing of.

Motion Picture or Television Studio.

Musical instruments; manufacturing of.

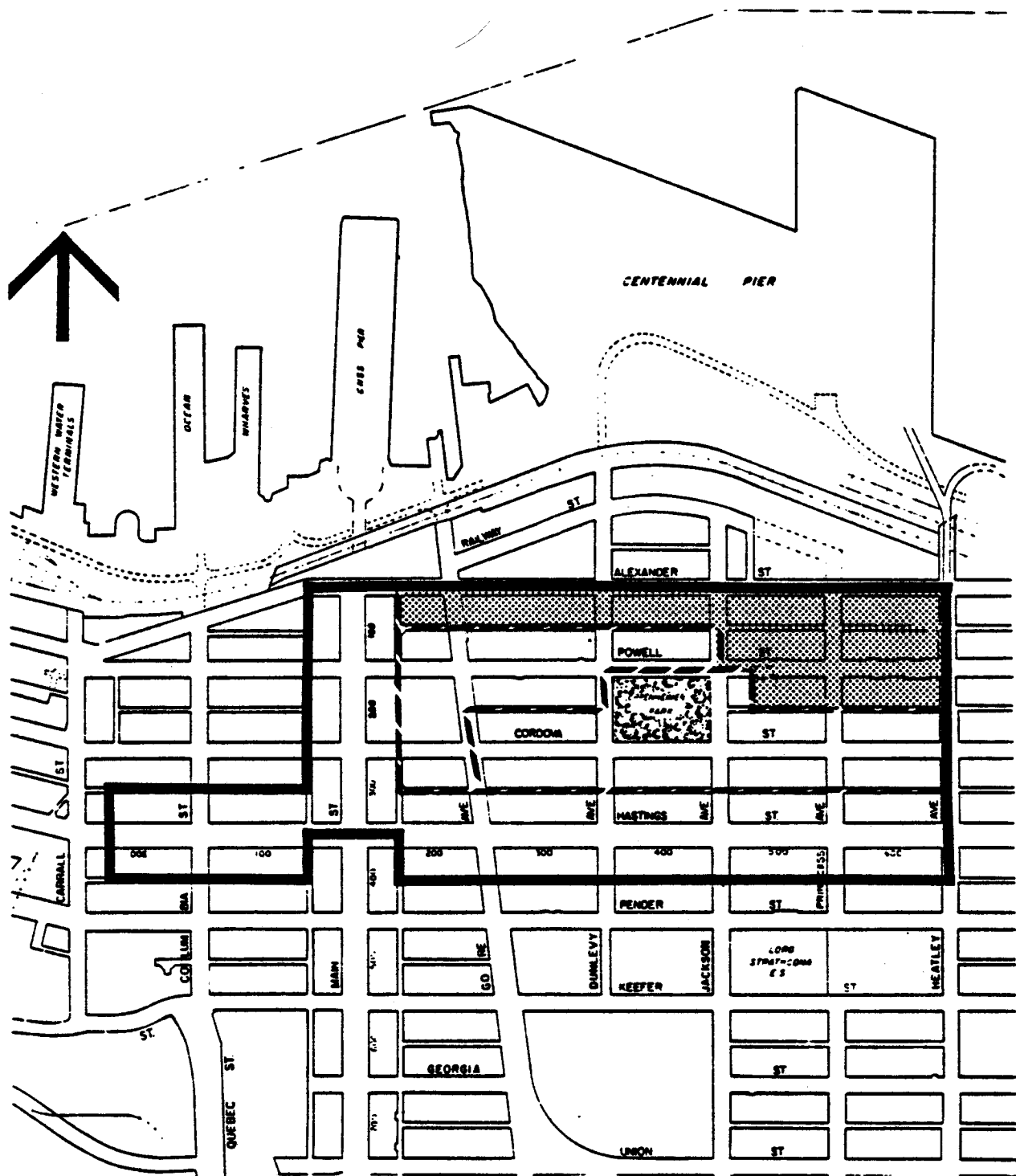
Novelties, decorations or ornaments; manufacturing of.

Paper products - secondary; manufacturing of, but not including the manufacturing of tar paper or other asphalt siding or roofing material.

Photo finishing.

Publishing.

Recording Studio.



Sub Area 4
ALEXANDER / POWELL
 Vancouver City Planning Department



MAP NO.

7

278

Restaurant, but restricted to a catering establishment only, and provided there is no hall or area for public use.
Scientific or professional equipment; manufacturing of.
Shoes or boots; manufacturing of.
Sign or showcard painting.
Signs or displays; manufacturing of.
Sporting goods or recreational equipment; manufacturing of.
Stationery supplies or office supplies, manufacturing of.
Storage yard; but only if used in conjunction with other uses in this sub-area and if neatly maintained and adequately screened.
Tobacco products; manufacturing of.
Toys; manufacturing of.
Typesetting, platemaking, engraving or trade binding as allied to the printing industry.
Warehousing.
Wholesaling.
Window shades and blinds; manufacturing of.

- (b) Office, if designed as accessory to other industrial uses permitted in this sub-area and it does not exceed 25% of gross floor area of buildings on the site, provided that the use has a direct relationship to the immediate industrial area and will not generally attract the public to its premises.
- (c) Residential, with an emphasis on self-contained units, but excluding a new Special Needs Residential Facility.
- (d) Parking garages to serve residential, retail, office or other commercial uses may be permitted by the Development Permit Board where special circumstances prevail; the Development Permit Board may require that such parking provide, in whole or in part, for non-commuter oriented usage.
- (e) Commercial uses, but restricted to (a) Laundromat, servicing local residents; and (b) Restaurant, already in existence prior to (date of enactment of this Plan).
- (f) Any other use which is not specifically listed herein, but which the Development Permit Board considers comparable in nature, having regard to the intent, goals and policies of this Plan.
- (g) A use not otherwise permitted which lawfully existed as of April 20, 1982, provided that it meets the CONDITIONS OF USE for this sub-area, and provided that the Development Permit Board is satisfied that any alteration or expansion results in a significant and noticeable increase in its compatibility with nearby and adjacent residential uses.

7.3 CONDITIONS OF USE The following conditions of use in addition to such other conditions as the Development Permit Board may decide, shall apply to industrial uses in this sub-area:

- (a) A use listed in this sub-area shall not involve the bulk storage of vegetable oil or fat; animal oil or fat; fish oil or meal; fish; grain; sugar; hops; wax; scrap or waste materials; lime; fertilizers; compressed gas; explosives; ammunition; fireworks; flares; industrial chemicals; acids; paint; varnish; petroleum; coal or tar products or derivatives; fungicides; pesticides or radioactive material.
- (b) A use listed in this sub-area shall not involve the operation or placement of operating machinery other than within a wholly enclosed building.
- (c) A use listed in this sub-area shall not involve the storage of goods or materials other than within a wholly enclosed building, unless restricted from public access and adequately screened from view from any adjacent street, lane or property by a wall, fence or landscaping that is acceptable to the Development Permit Board.
- (d) A use listed in this sub-area shall not use required parking areas, loading spaces or manoeuvring aisles for the storage of goods or materials or the placement of machinery, refuse or garbage receptacles.

7.4 RETAIL CONTINUITY Not applicable

7.5 DENSITY The maximum density for any development shall be a floor space ratio of 1.0, except that the Development Permit Board may permit an increase in the maximum density provided that:

- (a) any floor area, above a floor space ratio of 1.0, created after April 20, 1982:
 - (i) for non-residential use;
 - (ii) for residential floor area and resulting in more than 4 additional units; or
 - (iii) from the conversion of sleeping, housekeeping or hotel units to dwelling units;

shall only be permitted if at least 20 percent of the floor area permitted above a floor space ratio of 1.0, or at least 20 percent of the additional residential units, is developed for social housing;

- (b) the floor area shall not, in any case, exceed a floor space ratio of 2.5

7.6 PHYSICAL FORM

7.6.1 Height

The maximum height shall be 15 meters (approximately 49 feet).

The Development Permit Board may permit an increase in the maximum height of a building with respect to any development provided it first consults with any advisory group approved by Council for the area and takes into account the following:

- (a) the height, bulk and location of building and its effect on the site, surrounding buildings and streets, and existing views;
- (b) the effects and overall design on the general amenity of the area; and
- (c) the intent of this Plan, and the recommendation of any advisory groups, policy plan or guidelines approved by Council in the area.

7.6.2 Frontage

The maximum length of frontage for any non-residential use permitted in this sub-area shall be 30 meters (approximately 100 feet).

7.6.3 Front Yard

Not applicable.

7.6.4 Side Yard

No side yard shall be required, except that where a site abuts an existing residential building with any window lighting a habitable room, any facing wall of a new building shall be set back an adequate distance to ensure light and ventilation to the existing habitable rooms, in accordance with guidelines adopted by City Council.

- 7.7 PARKING AND LOADING Off-street parking and loading shall be provided and maintained in accordance with the provisions of Section 12 of the Zoning and Development By-law, No. 3575, subject to such variations as may be determined by the Development Permit Board.

7.8 SOCIAL AND RECREATIONAL FACILITIES

- 7.8.1 It is the purpose of this Section to provide in the Downtown-Eastside/Oppenheimer area the following social and recreational amenities for the enjoyment of Downtown-Eastside/Oppenheimer residents and employees:

- (a) facilities which provide opportunities for physical fitness;
- (b) facilities for general recreation;
- (c) facilities which provide a service to the public.

Facilities or areas which contribute to physical amenity, such as parks, plazas, arcades or ornamental elements in the landscape, are not included in this Section. Provision of these items and others of a similar nature may be required by the Development Permit Board where appropriate, as part of the design of the buildings.

7.8.2 Amenities Excluded from Floor Space Ratio

The following amenities and facilities are excluded from the FSR limitation provided that their area does not exceed 20% of the allowable FSR or 929 square meters (approximately 10,000 square feet) whichever is the lesser.

- (a) saunas
- (b) tennis courts
- (c) swimming pools
- (d) squash or racquet courts
- (e) gymnasiums and workout rooms
- (f) games rooms and hobby rooms
- (g) day care centers
- (h) other similar or related indoor uses of a social or recreational nature which in the opinion of the Development Permit Board are of a type which contribute to social amenity.

7.8.3 Bonuses for a Provision of Social and Recreational Amenities

Where a need for any public, social or recreational facility has been demonstrated to the satisfaction of the Development Permit Board, the Board may authorize, for any building which includes one or more of such facilities, an increase in the permitted floor space ratio or density of a building, subject to prior approval by City Council.

In determining the increase in floor area or density that may be authorized, the Development Permit Board shall consider:

- (a) the construction cost of the facility;
- (b) any costs to the developer of continuing maintenance required for the facility;
- (c) the rental value of the increased floor area;
- (d) the value of any authorized relaxations of other restrictions.

If appropriate, such facilities shall be preserved in the public domain by way of a registered agreement and operated by the City or its delegates.